

23VECV01359 23VECV01359

County: los-angeles

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Case Number: 23VECV01359 Hearing Date: August 3, 2026 Dept: B

Tentative Ruling

Shirian v. Fox Capital, Case no.

23VECV01359

Hearing date August 3, 2026

Defendant

Fox Capital's Motion to Reclassify

Plaintiff

Shirian sues defendants Fox Capital, LLC, Rediger Investment Corp. and Trustees of the Kamat Family Trust, alleging a light fixture fell on his head and a floor collapsed underneath him, resulting in severe injuries. Fox Capital moves to reclassify to limited jurisdiction. Plaintiff opposes.

Per

Code of Civil Procedure §86(a)(1), limited civil cases as those “in which the demand, exclusive of interest, or the value of the property in controversy amounts to thirty-five thousand (\$35,000) or less.” Id. “When it becomes clear, during the course of pretrial litigation, that the matter will necessarily result in a verdict below the superior court jurisdictional amount, and after the court affords the parties an opportunity to contest the transfer, the Superior Court shall transfer the matter to the Municipal Court.” Walker v. Superior Court (1991) 53 Cal.3d 257, 262.

Fox

Capital argues plaintiff's discovery responses do not support a finding that a

damages award could exceed \$35,000. Fox Capital offers arguments regarding the timeliness of plaintiff's discovery responses and veracity of allegations. These arguments cannot be considered on a motion to reclassify.

Plaintiff

claims \$2,500,000 in general damages, \$169,411.78 in past medical special damages and \$400,000 in future medical special damages. Plaintiff offers billing records from multiple treating medical professionals, substantiating his medical expenses. See Decl. Shirian, exhs. 1-14. Even setting aside the claimed general damages, plaintiff offers nearly 400 pages of supporting documentation, establishing the possibility of a special damages award in excess of \$35,000.

Moving

party's arguments that plaintiff will not succeed at trial cannot be considered in ruling on this motion; the only question the court can consider is whether plaintiff can establish the possibility of a damages award exceeding \$35,000. Plaintiff has done so. DENIED.